



DIY Guide

Consular Processing for your Marriage Based Green Card

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Summary

In what follows, we'll break down the process for obtaining a marriage-based green card while living outside the United States.

This guide is organized according to the following sections:

1. Broad Overview of the Application Process
2. Form DS-260 (Online Green Card Application)
3. Form I-864 (Affidavit of Support)
4. Uploading Documents onto NVC Website
5. Taking a Second Look
6. Preparing for the Interview

BROAD OVERVIEW OF THE APPLICATION PROCESSES

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TIMELINE: A BIRD’S-EYE VIEW

To begin with, your spouse — the U.S. citizen (or permanent resident) sponsor — will need to submit Form I-130, otherwise known as Petition for Alien Relative. They can do this either online or via snail mail. After the form has been submitted to U.S. Citizenship and Immigration Services (USCIS), the application will be reviewed and, hopefully, approved. This process can take — as of Dec. 2021— anywhere from 3 to 42 months to complete.

If you’d like to check the most recent processing time estimates, you can use the “Check Case Processing Times” tools on the USCIS website. All you need to do is select I-130 and the appropriate field office, then click the “Get processing time” button. You’ll find the estimated time range in the table toward the bottom of the page. You can find the tool here: <https://egov.uscis.gov/processing-times/>

Now, let’s review the timeline, step-by-step, following the submission of Form I-130.

Step 1: Once approved by U.S. Citizenship and Immigration Services (USCIS), the file will be sent to the National Visa Center (NVC), where it will be processed and formally entered into the system.

Note: while certain green card applicants will need to wait for a visa to be made available to them, marriage-based green cards are distributed immediately. This means, once USCIS approves your I-130, they will — in most cases — send it to the NVC right away.

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TIMELINE: A BIRD'S-EYE VIEW

Step 2: Shortly after the NVC is finished processing your case, they will send you a “Welcome Letter” containing instructions on how you can manage your account online. At this point, you will need to pay fees for both the Affidavit of Support and the processing of your Immigrant Visa Application.

- You'll be able to pay the fees online at the Consular Electronic Application Center (CEAC).
- You'll need to have a bank routing number and account number on hand to pay these fees online.
- You'll need to wait at least a week after submitting the payment before you can start filling out Form DS-260.

Step 3: Next, the agreed-upon financial sponsor(s) will need to fill out Form I-864, also called the Affidavit of Support. We'll go into greater depth below (starting on page 14), but for now, just know that this form is meant to show that you, the green card applicant, will be financially supported while living in the United States.

The sponsor will need to collect various financial documents, as indicated in Form I-864, in order to prove their financial readiness.

Step 4: Once the fees have been processed — after about a week — you should be able to open and begin filling out Form DS-260, known as the Online Immigrant Visa and Alien Registration Application. This is the actual green card application!

You'll be able to access your DS-260 on your CEAC account, which you set up when you received the Welcome Letter. You should see a “Start Now” link in the table titled “Applicant Information.”

Once complete, be sure to print out the confirmation page. You'll need this at your interview.

BROAD OVERVIEW OF THE APPLICATION PROCES

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TIMELINE: A BIRD'S-EYE VIEW

Step 5: After you've submitted the Online Visa Application, you will need to collect all the required civil documents. Once you're sure you have everything, you and your financial sponsor must scan all the civil and financial documents using a computer or smartphone.

- We'll cover this in greater detail below (starting on page 16), but you'll want to be sure that, after being scanned, each document is: a maximum of 2 MB, in color, and legible.
- You can find the list of documents required in your country on the State Department's website: <https://travel.state.gov/content/travel/en/us-visas/Visa-Reciprocity-and-Civil-Documents-by-Country.html>

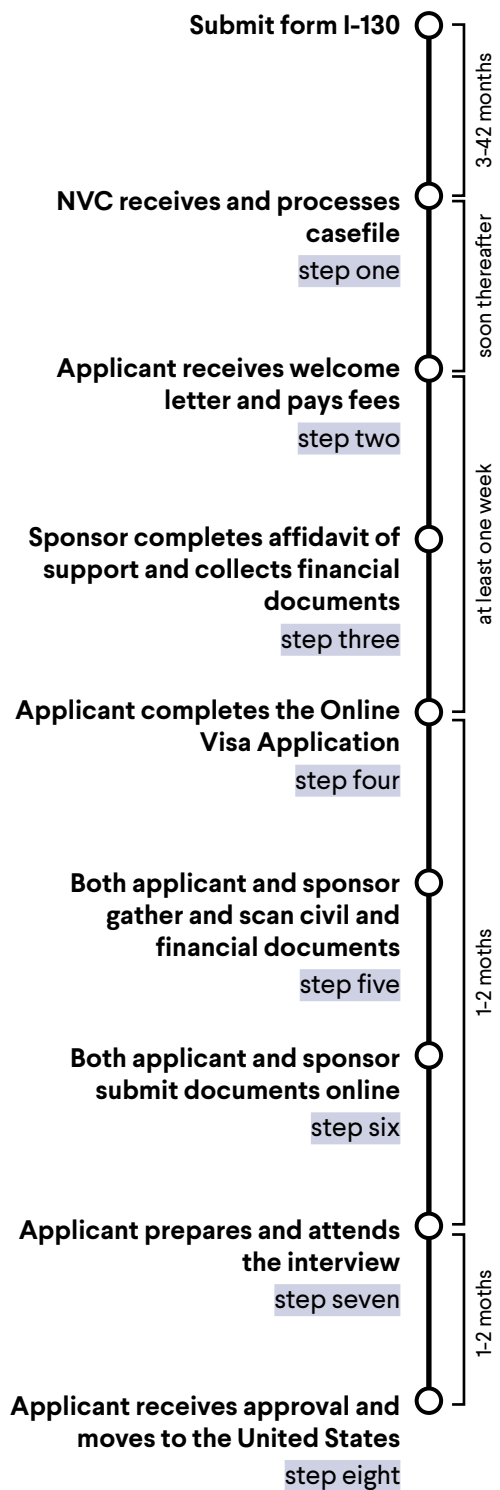
Step 6: You and your financial sponsor will then need to submit all the scanned documents via your CEAC account. You should see "Start Now" buttons under the sections titled "Affidavit of Support Documents" and "Civil Documents." Once finished uploading each document, you can hit the "Submit Documents" button.

- You'll also need to bring these documents to your interview.
- Remember, you shouldn't mail these to NVC, as this would likely result in severe delays.

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TIMELINE: A BIRD'S-EYE VIEW

Step 7: After everything has been submitted — sometimes several months later — you should receive an email from NVC indicating whether you've sent all the required documents. If so, they will coordinate with the U.S. Embassy or Consulate nearest to you to schedule an interview, and once a date is set, they will send you an Interview Appointment Letter (most likely via email). You will then need to prepare for and attend the interview, bringing with you the DS-260 confirmation page, all the required documents, and money for any unpaid fees (more on this starting at the bottom of page 8).

- Remember, prior to the interview, you'll need to schedule a medical exam with an authorized physician. You can find a list of physicians on the U.S. embassy website.
- The exam may also include certain vaccinations.
- If you can't attend the interview, you'll need to let the Embassy or Consulate know as soon as possible.

Step 8: After the interview, once you receive approval, you'll receive instructions from the U.S. Embassy about the steps moving forward. In brief, they will return your passport with the visa placed inside. You will then need to travel to the United States before your visa expires (usually 6 months) or prior to the expiration date listed on your medical exam — whichever comes first.

- Be sure to double check that there are no errors on the visa. If you find any mistakes, inform the U.S. Embassy or Consulate as soon as possible.

BROAD OVERVIEW OF THE APPLICATION PROCES

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 3: the Affidavit of Support (I-864)

The documents needed to successfully file Form I-864 will depend on the particulars of your situation, but by and large, your sponsor(s) will need to gather the documents listed below. These documents will need to be scanned and uploaded via the applicant's CEAC account (more on this starting on page 16).

- **Individual federal income tax return for the most recent tax year**
 - They should also include any W-2s, 1099s, or Schedules as evidence of income.
 - If they filed an extension, they'll need to include IRS Tax Form 8468 together with a signed statement and a tax return (or transcript) from the year prior.
 - They can include tax information for the last 3 tax years, if they think this will be helpful.
 - If they didn't file taxes, they'll need to include a signed statement as to why this is the case.
- **Documentation proving income**
 - 6 months of recent pay stubs
 - Letter (on official stationary) from employer with:
 - Description of duties
 - Salary (or wages)
 - The date the employment began
 - Any other evidence that the sponsor is employed.
 - If retired, sponsor(s) can include photocopies of other income sources, such as retirement benefits.

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 3: the Affidavit of Support (I-864)

The following list only pertains to certain petitioners, as indicated parenthetically below:

- **A copy of permanent resident card (for green card holders)**
 - Include both sides
- **Proof of U.S. citizenship (for U.S. citizens)**
 - Copy of birth certificate
 - Passport
 - Or certificate of naturalization or citizenship
- **Form I-864A (for sponsors using I-864A):**
 - One for each relevant household member.
 - I-864A is to be completed by household members whose income and/or assets are being used to meet the income requirements of I-864.
- **Where a household member's assets are needed to meet income requirements, documentation should be provided, showing the following (for sponsors using I-864A):**
 - The date the asset was acquired
 - The asset's value (including any liens against the asset)
 - The ownership of the asset
 - The location of the asset
- **Evidence that the household member lives with the sponsor and that they are in a qualifying relationship (for sponsors using I-864A).**
 - Not needed if the household member is the sponsor's spouse (you) or a dependent listed on their most recent tax return.

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 3: the Affidavit of Support (I-864)

- **Copies of household member's most recent tax return (for sponsor using I-864A):**
 - Additionally:
 - » All W-2s and 1099s for the same year
 - » Proof that they were exempt from filing their taxes (if applicable)
 - » Optionally, all the above for the last 3 years
- **Proof that the green card applicant (you) will continue to earn an income from the stated employer even after you move to the United States (for sponsors using spouse's income to qualify).**
 - Note: you, the green card applicant, only need to fill out I-864A if you are bringing dependents with you.
- **Photocopies of original Affidavits of Support (for petitioner sponsoring multiple applicants on a single I-864)**
- **A copy of Schedule C, D, E, or F taken from the most recent tax return (for self-employed sponsors)**
- **Evidence that the sponsor has active military status (for sponsors using 100% of Federal Poverty Guidelines for I-864 while on duty with the U.S. Coast Guard or U.S. Armed Forces)**

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 5: the Civil Documents

As the green card applicant, you will need to gather the civil documents listed below – for both you and any dependents immigrating with you. You will need to scan and upload these documents via your CEAC account, and bring them to your interview. Be sure that all documents are obtained from your country's issuing authority, and if they are in a language other than English, make sure you provide certified translations.

- **Birth certificate**
 - Original or certified copy for you and any accompanying dependents
- **Adoption records (if accompanying children are adopted)**
 - Must include:
 - » Adoption decree (certified copy)
 - » If you took custody prior to adoption, the legal custody decree
 - » Written statement containing a list of dates and locations where you lived with the adopted child
 - » (If adopted at age 16 or 17) Evidence that the child was adopted, by the same parent or parents, after, or at the same time as, a natural sibling under 16 years old
- **Marriage certificate**
 - Certificates for all marriages (originals or certified copies)
- **Military documents (if applicable)**
 - Military records from any country where you served (photocopies will suffice)
- **Prison and court records (if convicted of a crime)**
 - Certified copy of all prison and court records

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 5: the Civil Documents

- **Police certificates from:**
 - Any country where you lived for 12 months or longer while you were 16 years of age or older.
 - The country where you currently live, if you are older than 16 years of age and you have resided in that country for over 6 months.
 - Your country of nationality, if you are older than 16 years of age, and if at any point in your life, you lived there for over 6 months.
 - Any country where you were arrested, regardless of age or duration of residency.
 - No need to include certificates from the United States.
- **Copy of passport page with biographic information**
 - The page should include your name, and the date and location of your birth.
- **Adoption records (if accompanying children are adopted)**
 - Must include:
 - » Divorce decrees
 - » Annulment papers
 - » Death certificates

This list may vary depending on the country. You can check the State Department's "Document Finder" to see which documents are required in the country where you're applying: <https://travel.state.gov/content/travel/en/us-visas/Visa-Reciprocity-and-Civil-Documents-by-Country.html>

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 5: the Civil Documents

If you're unable to submit any of the required documents, you should provide a written statement explaining your situation.

You can also contact the Embassy or Consulate directly to ask for a list of required civil documents, if they haven't provided such a list already.

For Step 7: the Interview

You will need to bring the following items to your interview:

- **Passport**
 - Passport must be valid for at least 6 months past your date of admission into the United States.
- **Two identical 2x2 photos**
 - These must be in color.
 - And they must satisfy the State Department's photo requirements, which you can find here: <https://travel.state.gov/content/travel/en/us-visas/visa-information-resources/photos.html>
- **Confirmation page from DS-260**
 - You'll need to print this out once you complete the Online Visa Application (from Step 4).
- **The Interview Appointment Letter**
 - This is the letter (or email) sent to you by the NVC informing you of your interview appointment.
- **All civil documents (see above)**

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DOCUMENTS YOU'LL NEED THROUGHOUT THE PROCESS

For Step 7: the Interview

- **Translations**
 - Again, any documents in a language other than English must be translated.
 - These must be certified as accurate, and the translator must be fully capable of translating the materials.
- **Sealed medical exam (if given to you to bring to the interview)**
 - Do not unseal this exam.
 - In some cases, the medical exam may be sent directly to the embassy via mail.
- **Money for unpaid fees**
 - You may have already paid these fees, in which case you do not need to bring any money.
 - Be sure to check ahead of time to see if there's a remaining balance.

Again, as each country has its own set of procedures, you should be sure to check the Embassy website for a country-specific list. You can find Embassy-specific visa instructions here: <https://travel.state.gov/content/travel/en/us-visas/visa-information-resources/list-of-posts.html>

Once at the U.S. border, you should have your passport with the visa placed inside.

You should also be sure that you've paid the USCIS Immigrant Fee prior to leaving for the United States. You'll need to arrive in the United States prior to the expiration date listed on your visa (usually 6 months), or before your medical exam expires — whichever is sooner.

BROAD OVERVIEW OF THE APPLICATION PROCES

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STAYING AHEAD OF THE CURVE

There's a lot to consider when applying for a marriage-based green card. For this reason, you may want to prepare as much as you can as early as possible. To that end, we've provided some tips below to help you stay ahead of the curve.

Collect Documents Ahead of Time

Below are some documents you can collect even before Form I-130 has been approved.

- **Money for fees**
 - Having money set aside can help prevent any unnecessary stress as you get closer to your interview.
- **Birth certificate**
- **Documentation proving previous marriages have ended (for both partners)**
 - Divorce decrees
 - Annulment papers
 - Death certificates
- **All marriage certificates**
- **Passport**
 - You'll want to make sure your passport will be valid for the appropriate time frame.
 - If not, you may want to get it renewed sooner rather than later.

Now's a good time for your financial sponsor(s) to start collecting documentary proof for Form I-864 (the Affidavit of Support).

BROAD OVERVIEW OF THE APPLICATION PROCES

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STAYING AHEAD OF THE CURVE

Collect Documents Ahead of Time

While some documents can be gathered well in advance, others may be subject to certain time restrictions. It's impossible to list all of these documents, given that every country has different policies, but we will provide a couple examples. Be aware: all documents must be valid when you submit them online and at the time of your interview. Otherwise, your case could be delayed.

- **Two 2x2 photos** must be taken within 6 months prior to your interview.
 - While these photos can be taken ahead of time, you shouldn't get them outside of the 6-month window.
- **Police certificates** will generally expire after 2 years, so you should make sure that you obtain these within the appropriate time frame.
 - Note: if you have expired police certificates but you don't currently live in the country where they were issued, there's no need to retrieve new ones.

There may be other documents that you can collect ahead of time (such as prison and military records, and adoption papers). Just make sure that these are not subject to any time restrictions, or if they are, make sure you obtain them within the appropriate time frame

BROAD OVERVIEW OF THE APPLICATION PROCES

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STAYING AHEAD OF THE CURVE

Maintain U.S. Domicile

When filling out Form I-864 (the Affidavit of Support), your U.S. citizen spouse will need to show that they are currently domiciled in the United States. This does not necessarily mean that they reside there. If they live outside the country, there are a number of ways they can still meet the domicile requirement.

If possible, your spouse should continue to maintain a permanent address in the United States, as this is the most straightforward way to satisfy this requirement. They can also keep their U.S. bank accounts (or any investment accounts) open. We'll provide a more complete list of acceptable evidence below (starting at the top of page 26).

Find a Financial Sponsor

Generally speaking, your U.S. citizen (or permanent resident) spouse will be the financial sponsor who completes Form I-864. If, however, they are unable to meet the income requirements on their own, you may need to ask a joint sponsor to fill out the Affidavit of Support as well. Note: In either case, your spouse must still complete I-864.

If you know in advance that you will need a joint sponsor, it's a good idea to find this person as soon as possible. If, when the time comes, you don't have a financial sponsor who meets the income requirements, your application could be severely delayed, if not rejected.

BROAD OVERVIEW OF THE APPLICATION PROCES

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STAYING AHEAD OF THE CURVE

Get Ready for DS-260

You may want to collect, in advance, all the pertinent information you'll need while filling out Form DS-260. This will prevent you from having to run around collecting data at the last moment. You can gather the following items ahead of time:

- **The information on the NVC Welcome Letter:**
 - The beneficiary ID number
 - The invoice number
 - Your case number
- **Dates of your 5 most recent visits to the United States**
- **Any previous U.S. visas (if any)**
- **Information pertaining to any children you might be bringing with you:**
 - Such as the city, state, or country where they were born.
- **Addresses of previous residences**
 - Only places you've lived after turning 16
- **Your passport**
- **A complete résumé or C.V.**
 - Make sure everything is up-to-date and includes educational history

FORM DS-260 (ONLINE GREEN CARD APPLICATION)

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WHAT IS FORM DS-260 AND WHERE DO I FIND IT?

Form DS-260 – officially called the “Online Immigrant Visa and Alien Registration Application” – is for anyone applying for a family- or marriage-based green card while living outside the United States. It is filed with the NVC and handled, ultimately, by the U.S. Embassy or Consulate nearest to the applicant.

This form is not meant for anyone looking to visit the United States on a temporary basis, such as a tourist or someone using a K-1 fiancé(e) visa as a bridge toward permanent residency.

You, and any dependents immigrating with you, can complete this form online, via your CEAC account: <https://ceac.state.gov/IV/Login.aspx>. Once you’ve logged in, navigate to your summary page if you’re not already there, and click on “Start Now,” listed under “IV Application.”

You can find a sample version of DS-260 here: <https://travel.state.gov/content/dam/visas/DS-260-Exemplar.pdf>

In the end, your consular officer will consider both DS-260 and your interview when deciding whether to approve your application.

COMMON ERRORS TO AVOID

For starters, if you find that the form is not loading properly, or if there are other technical errors, you may want to try a different browser. Most browsers should work, but according to the State Department, Form DS-260 is optimized for Internet Explorer 8.0 or higher. You should also make sure that:

- Your browser supports 128-bit encryption
- Javascript is enabled (this should be default in most cases)
- The Transport Layer Security (TLS) protocol is enabled

FORM DS-260 (ONLINE GREEN CARD APPLICATION)

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WHAT IS FORM DS-260 AND WHERE DO I FIND IT?

As you work through the Online Visa Application, be sure to avoid the following common mistakes:

- **Using the wrong language**
 - Remember, all answers must be in English. Be sure to transliterate any addresses or names that are written using a non-latin alphabet.
- **Failing to print the confirmation page**
 - It's really important that you bring the confirmation page with you to the interview. Don't forget to print it out when you are finished with DS-260.
- **Omitting previous addresses**
 - You'll need to include all addresses of any previous residences.
 - Even if you maintained a permanent address while, for example, living at school, you should still include the non-permanent addresses.
- **Losing unsaved data**
 - If you haven't entered any information for 20 minutes, CEAC will automatically sign you out. So it's important to save often.
 - You can habitually hit the save button and, if you find it helpful, you can set a timer as a fail safe.
- **Invalid mailing address**
 - You may find that it takes a while for your green card to arrive at your residence in the United States.
 - Be sure that the mailing address you provide on Form DS-260 will remain valid at least until you receive the permanent resident card.

FORM DS-260 (ONLINE GREEN CARD APPLICATION)

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WHAT IS FORM DS-260 AND WHERE DO I FIND IT?

- **Missing work and education history**
 - Be sure that you've completed every field, specifically under the work/education/training section. You'll need a lot of specific information including but not limited to:
 - » Your employer's street address
 - » City
 - » State/Province (if any)
 - » Telephone number
 - » Supervisor's last name (if known)
 - » Supervisor's given names (if known)
 - » Start and end dates
 - » Brief description of duties

Ultimately, you want to be sure that you haven't missed any required fields and that there aren't any typographical errors. It might be a good idea to save the form after you complete it, so you can come back to it later. That way, you can review the application with fresh eyes.

If you've already submitted Form DS-260 and you notice errors after the fact, you can write them down and, at your interview, ask the consular officer to correct them.

FORM I-864 (AFFIDAVIT OF SUPPORT)

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WHAT IS FORM I-864 AND WHAT ARE THE REQUIREMENTS FOR SPONSORSHIP?

To begin with, there are technically 4 separate forms that may or may not be relevant in your case. They are:

- **I-864**
 - This is the generic form that most sponsors (for marriage-based green cards) will need to fill out.
- **I-864EZ**
 - The sponsor can use this form if you're the only applicant included on Form I-130 and there's no joint sponsor.
 - The income you are using to qualify is based entirely on your salary or pension and is shown on one or more Internal Revenue Service (IRS) Form W-2s provided by your employers or former employers.
- **I-864A**
 - If, in order to meet the income requirements, the sponsor needs to add another household member to the petition, they can submit an I-864A (for each relevant household member) with I-864. Both the sponsor and the household member must fill out and sign I-864A.
- **I-864W**
 - If you, the green card applicant, have already worked 40 quarters in the United States, then the financial sponsor may request an exemption with this form.

For our purposes, we will focus primarily on the generic Form I-864.

A financial sponsor completes Form I-864, also known as an Affidavit of Support, to show that, if necessary, they will be able to financially support you, the green card applicant, during your stay in the United States. The U.S. government wants to make sure that new arrivals will not become “public charges” – i.e. reliant on the government for financial assistance.

FORM I-864 (AFFIDAVIT OF SUPPORT)

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WHAT IS FORM I-864 AND WHAT ARE THE REQUIREMENTS FOR SPONSORSHIP?

As briefly mentioned above, the U.S. citizen spouse will need to complete Form I-864 no matter what, but if they are unable to meet the income requirement, a “joint sponsor” may also fill out an Affidavit.

It’s important to note that an Affidavit of Support is legally enforceable, meaning if the financial sponsor fails to fulfill their duty (even after a divorce), the U.S. government can pursue legal action in a court of law. Note: once you, the green card applicant, have worked 40 quarters in the United States, or once you’ve become a U.S. citizen, the financial sponsor(s) will no longer be bound by Form I-864.

The person who filed Form I-130 (your spouse) must also file Form I-864. As a financial sponsor, they must:

- Be at least 18 years old
- Be a U.S. citizen, U.S. national, or lawful permanent resident
- Be domiciled in the United States (or one of its territories)
- Earn 125% of the Federal Poverty Guidelines, at a minimum
 - See Form I-864P for a breakdown of the HHS Poverty Guidelines: <https://www.uscis.gov/i-864p>
- Be willing to fulfill their duties under Form I-864
- Be willing to have their financial information evaluated by a consular officer

For a list of acceptable proof of income, check the “Affidavit of Support” documents listed on pages 8 through 11.

FORM I-864 (AFFIDAVIT OF SUPPORT)

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IN WHAT CASES MIGHT I NEED A JOINT SPONSOR?

- You may need to find a joint sponsor if your spouse cannot meet the minimum income requirement of 125% of the Federal Poverty Guidelines.
- The joint sponsor will have to fill out Form I-864 and provide the appropriate documentation proving their income level (as listed on pages 8 through 11). They need to meet the same standards as the petitioning sponsor (listed in the previous section), but they do not need to be related to you, the green card applicant, or your spouse.

HOW DOES FORM I-864 DEFINE “DOMICILE” AND HOW DOES MY SPOUSE ESTABLISH IT?

Form I-864 defines domicile as the place where a person expects to live “for the foreseeable future” — it is, in essence, their principal place of residence.

Your spouse (or the joint sponsor) may, under this definition, live outside the United States while still claiming to be domiciled there. To make such a claim, they must include, with Form I-864, a written statement explaining their situation and evidence proving that they satisfy at least one of the following conditions:

- **Financial sponsor is living, temporarily, outside the United States**
 - Petitioner may include evidence such as:
 - » U.S. Federal tax records
 - » Deeds to property within the United States
 - » Statements from U.S. banking or investment accounts
 - » A permanent address within the United States
 - » U.S. voting record
 - » Proof that the financial sponsor is studying abroad

FORM I-864 (AFFIDAVIT OF SUPPORT)

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HOW DOES FORM I-864 DEFINE “DOMICILE” AND HOW DOES MY SPOUSE ESTABLISH IT?

- **Financial sponsor is employed by an acceptable organization, such as:**
 - A religious denomination with an officially recognized organization in the United States – petitioner must be employed as a missionary or a minister
 - The U.S. government
 - A public international organization involving the United States
 - A U.S. research institution, formally acknowledged by the Secretary of Homeland Security
 - An American firm, or one of its subsidiaries, working, at least in part, toward the expansion of commerce and foreign trade with the United States
- **Financial sponsor intends, as demonstrated in writing, to return to the United States by the time the green card applicant arrives there.**

As long as the financial sponsor is able to prove one of the above, they shouldn't have any problem showing that they are domiciled in the United States.

UPLOADING DOCUMENTS ONTO THE NVC WEBSITE

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FORMATTING GUIDELINES

You'll need to scan and upload Form I-864 (with supporting evidence) and the civil documents, both of which are listed above on pages 8 through 13.

Before you can upload these documents, you'll have to scan them using either a WiFi-connected smartphone or a computer. If you have neither, you can use a public option, such as a library or internet cafe. Note: you should be sure to delete the documents from any public computers after they've been uploaded.

When scanning your documents, make sure they meet the following requirements:

Each document must be scanned as a single file

- This means when you scan Form I-864, you should scan the whole document before saving it, rather than saving each individual page as a separate file.
- Relatedly, translations should be in the same file as their non-English counterparts.

The files should have one of the following extensions:

- .pdf — this is the preferred file type, but you should make sure the pdf is not modifiable.
- .jpeg
- .jpg

UPLOADING DOCUMENTS ONTO THE NVC WEBSITE

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FORMATTING GUIDELINES

- **Files should not exceed 2 megabytes (MB) in size:**
 - If a file is larger than 2 MB, then you should compress it.
 - How you compress the file will depend on your operating system. If you're using a Mac, for instance, you can open the file in Preview, go to the "File" menu, and select "Export." You should see a Quality Slider in the dialog box. To decrease the size of the file, you can move that slider toward "Least."
 - Alternatively, if you Google "compressing jpg," you should find multiple websites allowing you to compress JPG files in your browser.
 - Do not zip your files.
- **Files should not be password-protected**
- **Scanned documents should be easy-to-read and nothing should be omitted**
 - That includes page numbers
- **If a document has information on both sides, be sure to scan the front and back**
- **You should scan all documents in color**
- **The scanned document should be appropriately oriented**
 - In other words, the person reading the scanned documents should not have to rotate them.

It's generally a good idea to look at a preview of the document before saving it. You can use the preview to determine whether it meets the above-mentioned criteria. Once you're happy with each scan job, you can save the documents in such a way that they can be retrieved later.

UPLOADING DOCUMENTS ONTO THE NVC WEBSITE

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UPLOADING THE DOCUMENTS

Once you've collected and scanned these documents — using the guidelines listed in the previous section — you should navigate to your CEAC account. After you've logged in, you can click the “Start Now” buttons, which you should find under “Civil Documents” and “Affidavit of Support Documents.” You can then begin uploading the files to the CEAC website. When you are finished uploading both sets of documents, you should see a “Submit Documents” button. Click this once you're ready.

If you're missing any required documents, CEAC will not let you submit. If everything's there, your documents should be sent to the NVC to be evaluated. To check NVC's current case review timeline, you can visit the following website: <https://travel.state.gov/content/travel/en/us-visas/immigrate/nvc-timeframes.html>

TAKING A SECOND LOOK

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It's always a good idea to double (and even triple) check your lists, to make sure that everything is in order prior to submission and before heading into the interview. To see everything all at once, you may want to lay all the papers out on a large table or even on your living room floor.

Then, you can use the following checklist as a starting point:

- It's a good idea to double check every question on Form DS-260 — just to be absolutely certain that you didn't miss any necessary information.
- You should also go back through the lists of documents on pages 8 through 14 to make sure you have all the necessary documentation. As previously mentioned, you should make sure you have an Embassy-specific list of documents.
- For starters, make sure you have all the civil documents including:
 - Your birth certificate
 - Any adoption records (if applicable)
 - Military documents (if applicable)
 - Marriage certificates
 - Prison and court records (if applicable)
 - Police certificates from the appropriate countries
 - The biographic page of your passport
 - » Make sure it will be valid 6 months after your planned arrival in the United States
 - Proof that all previous marriages have been terminated
 - The sealed medical exam (if given to you after your visit to the doctor)

TAKING A SECOND LOOK

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- Also, don't forget to make sure you have all the documents you need for the interview:
 - Your passport
 - Two 2x2 photos
 - Confirmation page from DS-260
 - Interview Appointment Letter
 - Sealed medical exam (if given to you by the physician)
 - All the civil documents
 - Translations of every document not written in English
 - Money for any remaining fees
 - Double-check that your two 2x2 photos meet all the standards outlined on the State Department's website: <https://travel.state.gov/content/travel/en/us-visas/visa-information-resources/photos.html>
 - Make sure your financial sponsor — whether it's your spouse or a joint sponsor — has all the required financial documents including:
 - Federal income tax returns from the most recent year
 - Any W-2s, Schedules, and/or 1099s
 - IRS Form 8468 (if filed for an extension) with signed statement explaining extension
 - Optionally, tax information from the last 3 years
 - 6 months of recent pay stubs
 - Letter from employer (on stationary with business letterhead)
 - Proof of citizenship or lawful permanent residency
 - Any other situationally-specific documents
 - You should be sure to create your own master list for your specific set of needs. For instance, if your financial sponsor is including assets and/or income of other household members on Form I-864, you will likely need to add items to your checklist. And there may be other circumstances (not mentioned here) that could augment or diminish the final list of required documents.

PREPARING FOR THE INTERVIEW

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Practically speaking, you'll need to make sure that you've received the required medical exam and that you have all the required documents, as mentioned in the previous section.

Beyond that, it's a good idea to spend some time preparing for the actual interview. You should have a sense of what types of questions the officer will ask — even if you don't know the precise content of those questions. And you should follow certain principles that help keep you grounded throughout the interview.

First, the principles:

- **Be honest**
 - You shouldn't stress about painting your marriage as some eternal holiday where nothing ever goes wrong. If you need to answer a question by telling the consular officer about a disagreement you had with your spouse, then go ahead and say it. In fact, this will probably make your relationship seem even more authentic.
- **Stay loose**
 - Remember, you know you have an authentic relationship with your spouse. Be confident and allow yourself to have a little fun as you remember all the times you've spent together.
- **Be prepared**
 - If you've been working through this document and double-checking your lists, you're definitely on the right track. Now just take a little time to review the types of questions you can expect at your interview.

PREPARING FOR THE INTERVIEW

(back to TOC)

So what questions will they ask at the interview? Every consular officer is different, but by and large, they're going to want to know about your relationship with your spouse. They want to be as certain as possible that you actually have an authentic marriage and that you're not trying to game the immigration system.

Below are some possible questions. These are meant to give you a sense of what to expect. We, however, cannot guarantee that these specific questions will actually be asked.

- **Questions pertaining to your wedding**
 - What was it like?
 - Did you go on a honeymoon? Where?
 - Who was at the wedding?
 - What type of cuisine did you serve?
- **Questions pertaining to personal habits**
 - Do you and your spouse wear special pajamas? If so, what kind?
 - Does your spouse take medications? If so, what do they take?
 - What's your pre-bedtime ritual?
- **Questions pertaining to daily life**
 - What's a day-in-the-life of you and your spouse?
 - Do you eat breakfast together?
 - How do you split up the chores?
 - Do you talk on the phone a lot?
- **Questions pertaining to the beginning of the relationship**
 - When and how did you meet?
 - What was the proposal like?
 - What was your first date like?
 - Did you wait a long time before getting married?

PREPARING FOR THE INTERVIEW

(back to TOC)

These are just a few examples. They may also ask about your kids (if you have any) and any family rituals you may have, such as birthdays or holidays.

You can use these questions to craft a practice interview, which you can do with your spouse or a friend. It's helpful to practice speaking about your relationship out loud before you do it for the first time in the interview.

At the end of the day, if you're in a real, authentic marriage, you shouldn't have anything to worry about. Just take a breath and answer confidently.

Whatever the outcome, we at Boundless want to hear about it, so we can help guide through the next steps. We wish you the very best of luck as you venture forth!

SOURCES

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U.S. Government

[The Immigrant Visa Process](#)

[I-864, Affidavit of Support Under Section 213A of the INA](#)

[Civil Documents – U.S. Visas](#)

[Photo Requirements](#)

[U.S. Visa: Reciprocity and Civil Documents by Country](#) (Document Finder)

[List of U.S. Embassies and Consulates](#)

[Form I-864, Affidavit of Support Instructions](#)

[Immigrant Visa – Sign In](#)

[DS-260 IV Application SAMPLE](#)

[NVC Timeframes](#)

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[Consular Processing, Explained](#)

[What Documents Do We Need for a Marriage Green Card?](#)

[How Long Does It Take to Get a Marriage Green Card?](#)

[What is an Affidavit of Support? US Immigration Form I-864](#)

[DS-260 and DS-261 – About These Online Forms](#)

[Preparing for the Marriage Green Card Interview](#)



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